

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**-----
KEVIN HAZELL

Plaintiffs,

Index No.:

against

VERIFIED COMPLAINTTHE CITY OF NEW YORK, DOES 1-10
Defendant(s)

TAKE NOTICE, the Plaintiff KEVIN HAZELL hereby appears in this action by his attorneys, Umoh Law, and demands that all papers be served upon him, at the address below, in this matter.

Plaintiff complaining of the defendants, The City of New York, Does 1-10, being the arresting Officer and Does 1-10 collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiffs, as a result of the unlawful arrest, malicious prosecution, excessive force, and due process violations perpetrated by the defendants by the use of excessive force, unlawfully arresting, and prosecuting plaintiff.

PARTIES

2. Plaintiff Kevin Hazell is a resident of the County of Kings in the State of New York.

3. Defendant Officers Does 1-10 are the arresting officers, whose names are presently unknown officers for the City of New York, acting under color of state law. They are being sued in both their individual and official capacity.

4. The Defendant, City of New York is a municipality in the State of New York

and employs the Defendant Officers.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

5. On or about March 2021 Mr. Hazell served Ms. Mann (mother of his daughter) a petition for custody of their daughter, because the living environment was unsafe.\
6. On or about June 2021, plaintiff went to pick up his daughter at the precinct, Ms. Mann was video recording him while yelling, " He's not giving me back my child!" repeatedly as he waited for an Officer to come out of the Precinct and witness "the exchange."
7. When the Officer came out, Ms. Mann began yelling, "I have an OOP against him!" The Officer asked for her to display the Order Of Protection, and she responded, I don't have it yet, but I know there is one.
8. The Captain came out and said he wanted to speak to her alone. Ms. Mann is an accountant for the D.A., with a shield.
9. When they came back from the side of the building, the mother grabbed Elle out of plaintiff's arms, cause her to kick and scream, while the Officers grabbed plaintiff and put him against the wall and arrested him.
10. While in the precinct, plaintiff kept asking why am he arrested, and they said, he had an OOP against me and he was banging on Ms. Mann's window. All things he denied as they never happened.
11. Plaintiff asked why he was not heard, why is it her word alone and if there proof. They said they have proof as they carried on processing him. While in holding, plaintiff asked the officer repeatedly why he was being arrested with no OOP and no evidence to support. The Officer said there isn't any video proof.

12. The Officer continued by saying, her Captain said to process plaintiff's arrest and put the cause of his arrest was now an email response he purportedly wrote regarding their daughter and the pick-up location from a previous date.
13. After plaintiff left the Precinct and was being driven down to Central Booking, he asked the Officer driving, who has my paperwork, what does it say, as to why he was arrested? Plaintiff was told it was because of an email he wrote.
14. After being processed at Central Booking and spending another 24 plus hours being detained, plaintiff saw the Judge. He was then told by the DA that my charges were, "Acting in manner to Injure a child", "Menacing", "Creating Hazardous Conditions" and "Harassment." The Judge said this matter will be taken to ACS.
15. The Judge heard both sides, gave plaintiff a court date, confirmed there was no OOP associated with plaintiff in the prior case and then said she will not be issuing an OOP in this case.
16. Plaintiff was suspended from his job for 15 days with no pay for the first arrest, then 20 days no pay for the second arrest.
17. On September 2021 plaintiff was in Court to address both arrests. At this time, all the charges were dropped. Prosecution could not produce evidence to further support the case.
18. In July 2022 - during a Family Court hearing, plaintiff's lawyer was given an "Indicated Report" (a Report that puts my name in the National Registry for neglect and or abuse to a child) paper by Ms. Mann's attorney.
19. The next day plaintiff contacted the ACS case worker who was involved, and was told she only spoke to the D. A. and Ms. Mann about the details of the case

And that "if the Police arrested me, there has to be good reason why." Also that Plaintiff never received any papers indicating that an Indicated Report was in process," nor the paper to say "an Indicated Report was declared," was because Ms. Mann kept on calling the worker and asking about the status on her Investigation, so she gave her what she had, instead of mailing it to me.

AS A FIRST CAUSE OF ACTION:

42 .S.C Section 1983-against all Defendants.

20. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below.

21. Without probable cause or reasonable suspicion, using excessive force, and assaulting him, Officers deprived Plaintiffs of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

22. In addition, the Defendants conspired among themselves to deprive plaintiffs of their constitutional rights secured by 42 U.S.C. Section 1983, and by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

23. The defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as police officers. Said acts by the Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of her constitutional rights secured by 42 U.S.C. Section 1983, and by the First, Fourth, Fifth, Eighth and

Fourteenth Amendments to the United States Constitution.

24. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12 against all Defendants

25. Plaintiffs hereby restate all paragraphs of this complaint, as though fully set forth below.
26. By using excessive force without probable cause or reasonable suspicion, using excessive force, and assaulting her, the Defendants deprived Plaintiffs of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
27. In addition, the Defendant Officers conspired among themselves to deprive plaintiffs of her constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
28. The Defendants Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as Correctional Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of her constitutional rights secured by Article 1, Section 12 of the New York Constitution.
29. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiffs' deprivation of his state constitutional rights. Defendant City of New York, as employer, is responsible for their wrongdoing under the doctrine of respondent

superior.

30. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A THIRD CAUSE OF ACTION:

Assault and Battery—City of New York

31. Plaintiffs hereby restate all paragraphs of this complaint, as though fully set forth below.

32. In physically assaulting, threatening and intimidating plaintiffs, the Defendants Officers, acting in their capacities as Officers, and within the scope of their employment, each committed a willful, unlawful, unwarranted, and intentional assault and battery upon plaintiffs.

33. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages hereinbefore stated.

AS A FOURTH CAUSE OF ACTION:

Intentional Infliction of Emotional Distress-all Defendants

34. The Plaintiffs hereby restate all paragraphs of this complaint, as though fully set forth below.

35. The Defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.

36. Plaintiffs' emotional distress has damaged his personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious detention and imprisonment by the Defendants Officers.

37. Defendants, their officers, agents servants, and employees were responsible for the intentional infliction of emotional distress suffered by the Plaintiffs at the hands of the

Defendants' employees. Defendants, as employers, are responsible for their wrongdoing under the doctrine of respondent superior.

38. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

AS A FIFTH CAUSE OF ACTION:

Negligent Retention of Employment Services-against the City of New York.

39. Plaintiffs hereby restates all paragraphs of this Complaint, as though fully set forth below.

40. Upon information and belief, defendants, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.

41. Upon information and belief, defendants owed a duty of care to plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiffs or to those in a like situation would probably result from this conduct.

42. Upon information and belief, defendants knew or should have known through the exercise of reasonable diligence that their employees were not prudent.

43. Upon information and belief, defendants' negligence in hiring and retaining the employees Defendants proximately caused Plaintiffs' injuries.

44. Upon information and belief, because of the defendant's negligent hiring and retention of the aforementioned Defendants, Plaintiffs incurred significant and lasting injuries.

AS A SIXTH CAUSE OF ACTION:

Wrongful Incarceration pursuant to 42 U.S.C. § 1983:

45. Plaintiffs hereby restate all paragraphs of this Complaint, as though fully set forth

below.

46. Defendants subjected him to a Wrongful Incarceration in that they had a right to be free from continued detention stemming from defendants mishandling or suppression of exculpatory evidence, that the actions of Defendants violated that right, and that the Defendants' conduct shocks the conscience.

47. Plaintiffs incurred significant and lasting injuries.

AS A SEVENTH CAUSE OF ACTION:

Failure to Intervene pursuant to § 1983:

48. Plaintiffs hereby restates all paragraphs of this Complaint, as though fully set forth below.

49. Police officers have an affirmative duty to enforce the law and preserve the peace. This includes stopping other police officers from violating the law. A police officer may not ignore the duty imposed by his office and fail to stop other officers from violating the law in his presence.

50. One or more of the defendants was in a position to, and had the ability to stop said unlawful arrest, assault and prosecution of the plaintiffs by other defendants, but did nothing to prevent it.

51. Plaintiffs incurred significant and lasting injuries.

AS AN EIGHTH CAUSE OF ACTION:

Malicious Prosecution – State Law

52. Plaintiffs hereby restates all paragraphs of this Complaint, as though fully set forth below.

53. Defendants maliciously prosecuted in that the defendant initiated a prosecution against

plaintiffs, without probable cause to believe the proceeding can succeed, the proceeding was begun with malice and, the matter terminated in plaintiffs' favor.

54. Plaintiffs incurred significant and lasting injuries.

AS A NINTH CAUSE OF ACTION

False Arrest – State Law

55. Plaintiffs hereby restates all paragraphs of this Complaint, as though fully set forth below.

56. Defendants arrested and detained plaintiffs without probable cause for such an arrest or detention.

57. Plaintiffs incurred significant and lasting injuries.

WHEREFORE, plaintiffs respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all the defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;
2. On the Second Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Officers Defendants in an amount to be determined at trial;
3. On the Third Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Defendants in an amount to be determined at trial;
4. On the Fourth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Defendants in an amount

- to be determined at trial;
5. On the Fifth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Defendants in an amount to be determined at trial;
 6. On the Sixth Cause of Action, against all defendants, compensatory damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988; and
 7. On the Seventh Cause of Action, against all defendants, compensatory damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988; and
 8. On the Eighth Cause of Action, against all defendants, compensatory damages in an amount to be determined at trial; and
 9. On the Ninth Cause of Action, against all defendants, compensatory damages in an amount to be determined at trial; and
 10. Such other and further relief as this Court may deem necessary in the interest of justice.

Dated:

June 23, 2023
New York, New York

Respectfully Submitted

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By:

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